

IN THE CIRCUIT COURT OF _____ COUNTY, WEST VIRGINIA

Circuit Court Case No. _____

IN RE: Expungement of Record of:

Magistrate Court Case No. _____

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Conviction Date: _____

Petitioner (First/Middle/Last) _____

Address: _____ DOB: ____ / ____ / ____ Phone No. _____

SSN: XXX-XX-_____

PETITION FOR EXPUNGEMENT OF MISDEMEANOR VIOLATIONS

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AND TRAFFIC CITATIONS

W. Va. Code §61-11-26 and §61-11-26(a)

Comes now the petitioner, pro se, pursuant to §61-11-26 and/or §61-11-26a to expunge the following misdemeanors in the above referenced case:

CHARGE: _____ CASE NO.: _____

CHARGE: _____ CASE NO.: _____

CHARGE: _____ CASE NO.: _____

CHARGE: ☐ _____ CASE NO.: _____

In Support of this Petition, the Petitioner states as follows:

- The charge(s) noted above are not excluded under §61-11-26(c).
- Petitioner has no pending charges at this time.
- Petitioner has completed eligibility requirements for expungement as prescribed by one of the below:

For the expungement under WV Code §61-11-26 of a single above listed and described misdemeanor conviction or traffic citations(s), one year has passed since the completion of petitioner's sentence and any period of supervision. The date of eligibility is: _____.

For the expungement under WV Code §61-11-26 of multiple above listed and described misdemeanor convictions or traffic citation(s), two years have passed since any conviction and the completion of petitioner's sentence and any period of supervision. The date of eligibility is: _____.

For the expungement under WV Code §61-11-26 of a single above listed and described misdemeanor conviction or traffic citation(s), where the petitioner satisfies the requirements of §61-11-26a(1) or §61-11-26a(2), or both, if applicable, following the completion of petitioner's sentence and any period of supervision. The date of eligibility is: _____. **Petitioner must provide documentation required under §61-11-26a(b).**

For the expungement under WV Code §61-11-26 of multiple above listed and described misdemeanor convictions or traffic citation(s), where the petitioner satisfies the requirements of §61-11-26a(1) or §61-11-26a(2), or both, if applicable, one year has passed since any conviction and completion of petitioner's sentence and any period of supervision. The date of eligibility is: _____. **Petitioner must provide documentation required under §61-11-26a(b).**

d. Petitioner's current name, previous names, and all aliases:

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e. All of petitioner's addresses from the date of offense to current:

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f. Date of arrest: _____

g. Petitioner was convicted on the following charges:

h. Name(s) of victim(s) if applicable:

i. Is there a current order for restitution, protection, restraining order or other no contact order prohibiting the petitioner from contacting victim(s)?

Yes (If yes, attach copy of order to this petition)

No

Was there a prior order for restitution, protection, restraining order or other no contact order prohibiting the petitioner from contacting victim(s)?

Yes

No

j. The Court's verdict and punishment imposed was:

k. Grounds for expungement request, including but not limited to employment or licensure purposes
(please explain in detail):

l. Steps petitioner has taken since the time of the offense towards personal rehabilitation, including treatment, work, or other personal history that demonstrates rehabilitation (please explain in detail):

m. Has petitioner ever been granted expungement or similar relief regarding a criminal conviction by any court in this state, in any other state, or by any federal court?

Yes

No

n. Petitioner has attached any supporting documentation, sworn statements, affidavits, and/or other information supporting the petition to expunge.

Wherefore, pursuant to WV Code §61-11-26, the petitioner respectfully requests that this Honorable Court expunge the conviction(s), and the records associated therewith, as provided in this petition.

Signature of Petitioner

VERIFICATION

I, _____ after making an oath or affirmation to tell the truth, say that the facts I have stated in this Petition are true to the best of my personal knowledge and belief; and if I have provided information given to me by others, I believe that information to be true.

Signature of Petitioner

Date

This Verification was sworn to or affirmed before me on the _____ day of _____, 20____.

Notary Public/Other Official

My commission expires: _____.

CERTIFICATE OF SERVICE

I, _____, do hereby certify that I have, on this _____ day of _____, 20_____, given a true and correct copy of the foregoing Petition For Expungement Of Criminal Records as Provided Under W.Va. Code § 61-11-26 and/or West Virginia Code §61-11-26(a) with all attached supporting documentation to:

1. The Superintendent of the State Police, at

2. The _____ County Prosecuting Attorney's Office, at

3. The Chief of Police (or other Executive Head of the Municipal Police Department where the offense(s) were committed, at

4. The Chief Law Enforcement Officer of any other Law Enforcement Agency which participated in the arrest (if applicable), at

5. The Superintendent or Warden of any institution in which Petitioner was confined (if applicable) at

6. The Circuit Court that disposed of the Petitioner's criminal charges (if applicable) at

7. The Magistrate Court that disposed of the Petitioner's criminal charges (if applicable) at

8. The Municipal Court that disposed of the Petitioner's criminal charges (if applicable) at

By the following method:

First Class Mail

Hand Delivery

Certified Mail - Return Receipt

Date

Signature of Petitioner

**PETITION FOR EXPUNGEMENT OF CRIMINAL RECORDS
PROVIDED UNDER W. Va. CODE §61-11-26**

INSTRUCTIONS

Petition Form

Carefully read the attached form to fill out your Petition for Expungement of Criminal Records Provided Under W. Va. Code §61-11-26. All of the statements included on the Petition form must apply to you, and must be true, in order for you to be eligible for expungement under this Code section. At any subsequent hearing on your petition, you will have the burden of proof to demonstrate by clear and convincing evidence that the statements you provide on the Petition are true.

Legibly print or type your answers in the blanks provided for the caption (title) section and numbers 1 – 2 on the provided form.

Statements numbered 5 through 5g, deal with specific offenses which are not eligible for expungement. Note that all of the statements in the Petition must be true in your case in order for you to be eligible to Petition the Court for expungement. Also note that from the time you file your Petition and while the Petition is pending, you cannot be arrested or made subject to any pending criminal proceeding to stay eligible for expungement under this Petition.

Check your responses to 1 – 5g, sign the Petition, and move on to the Verification portion.

Verification Form

Legibly print or type your answers to fill in the blanks on numbers 1 – 6 of the Verification portion of the form.

Check the appropriate box to answer number 7, and if you answered “yes”, attach the requested copy of the Order(s) described.

Legibly print or type your answers to numbers 8 through 10, and check the appropriate box for your answer to number 11, and attach any supporting documentation as described in number 12.

Certificate of Service Portion

Fill out the caption (title) portion of the Certificate of Service, and indicate the boxes next to all applicable recipients, legibly printing or typing the appropriate addresses, and make as many copies of your petition and all attached documentation as necessary to serve all parties by the method you indicate. Under W. Va. Code §61-11-26(e), any of the parties you serve may file a notice of opposition to the Court. If this should happen, you will be notified and will then have ten (10) days of being served of such notice to reply.

IN THE CIRCUIT COURT OF _____ COUNTY, WEST VIRGINIA

IN RE: EXPUNGEMENT OF RECORD OF

Circuit Court Case No. _____

Lower Court Case No. _____

Full Name of Petitioner

**PETITION FOR EXPUNGEMENT OF CRIMINAL RECORDS
AS PROVIDED UNDER W. VA. CODE §61-11-26**

Comes now the petitioner, pro se, and in support of his or her Petition for Expungement of Criminal Record does hereby allege and state as follows:

1. That on _____, the petitioner was convicted of the misdemeanor offense(s) of _____. Which was/were _____ Assigned case number(s) _____. This paragraph includes all misdemeanor offenses and offenses arising from the same transaction.
2. That on, _____, I, _____ born on _____, was between eighteen and twenty-six years of age.
3. I, _____, have no prior or subsequent convictions other than minor traffic violations at the time of this filing.
4. That one year has passed since the above listed and described conviction or completion of petitioner's sentence of incarceration, whichever happened later in time. The applicable date is _____
5. I allege and state that the above-noted charge(s) are eligible for expungement under this statute, because they do not involve any of the criteria that would render them ineligible under W. Va. Code §61-11-26(i), including
 - a. Any violation involving the affliction of serious injury;
 - b. Any violation involving the provisions of W. Va. Code §61-8B-1, *et. Seq.* where petitioner was eighteen (18) or older and the victim was twelve (12) or younger at the time the violation occurred;
 - c. The use or exhibition of a deadly weapon or dangerous instrument;
 - d. Any violation of W. Va. Code §61-2-9(b) or (c) where the victim was a spouse, a person with whom the petitioner had a child in common or with whom the petitioner ever cohabited prior to the offense;
 - e. Any violation of W. Va. Code §61-2-28;

- f. A conviction for driving under the influence of alcohol or controlled substances;
- g. Any violation of W. Va. Code §17B-4-3 or W. Va. Code §61-8-19.

Wherefore, pursuant to W. Va. Code §61-11-26 (2009), and subject to the attached verification and information, the petitioner respectfully requests that this Honorable Court expunge the conviction(s) and the records associated therewith.

Signature of petitioner

VERIFICATION

I, _____, verify the above and foregoing under oath, and included the following as required under W. Va. Code §61-11-26:

1. All petitioner's names, current and previous:

2. All petitioner's addresses, in order, from the date of offense to current:

3. Date of birth: _____ Social Security Number: _____

4. Date of arrest: _____

Court of jurisdiction: _____

Complaint, indictment, summons or case no.: _____

5. Statute and offense(s) of conviction(s):

6. Name(s) of victim(s) or state of no identifiable victim(s):

7. Is there a current order for restitution, protection, restraining order or other no contact order prohibiting the petitioner from contacting the victim(s)

☐ Yes (If yes, attach a copy of the order to this petition)

☐ No

Was there a prior order for restitution, protection, restraining order or other no contact order prohibiting the petitioner from victim(s)

☐ Yes (If yes, attach a copy of the order to this petition)

☐ No

8. The Court's disposition of the matter, and punishment imposed, if any, was:

9. Statement of reason for expungement request (ex. Employment or licensure purposes) and why it should be granted:

10. Statement of steps petitioner has taken since the time of the offense toward personal rehabilitation, such as treatment, work, other personal history that demonstrates rehabilitation:

11. Has petitioner ever been granted expungement or similar relief regarding a criminal conviction by any court in this state, in any other state, or by any federal court?

☐ Yes

☐ No

12. I have attached any supporting documentation, sworn statements, affidavits, or other information supporting the petition to expunge.

Wherefore, pursuant to W. Va. Code §61-11-26 (2009), I, the Petitioner, verify under oath that the foregoing is true in support of my Petition for Expungement of Criminal Records as Provided under W. Va. Code §61-11-26.

Petitioner's Signature

IN THE CIRCUIT COURT OF _____ COUNTY, WEST VIRGINIA

IN RE: EXPUNGEMENT OF RECORD OF

Circuit Court Case No. _____

Lower Court Case No. _____

Full Name of Petitioner

CERTIFICATE OF SERVICE

I do hereby certify that I have this day given a true and correct copy of the foregoing Petition for Expungement of Criminal Records as Provided Under W. Va. Code §61-22-26 and all attached supporting documentation to:

The Superintendent of the State Police, at

The _____ County Prosecuting Attorney Office, at

The Chief of Police (or other Executive Head of the Municipal Police Department where the offense(s) were committed, at

The Superintendent or Warden of any institution in which Petitioner was confined (if applicable) at,

The Magistrate Court or Municipal Court which disposed of the criminal charge at

All other state and local government agencies whose records would be affected by an expungement (if applicable) at

By the following method:

- ☐ First Class Mail
☐ Hand Delivery
☐ Certified Mail – Return Receipt

Date

Signature of Petitioner